

Tentative Rulings for August 5, 2026 Department M302

**To request oral argument, you must notify
Judicial Secretary Lauren Garcia at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M302 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT IN-PERSON OR VIA ZOOM VIDEO WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 672 7660**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2403097	KNAPP VS BARCELON	MOTION TO STRIKE PARAGRAPHS 8 THROUGH 11

Tentative Ruling: GRANTED, NO OPPOSITION.

2.

CASE #	CASE NAME	HEARING NAME
CVME2403097	KNAPP VS BARCELON	DEMURRER ON 2 ND AMENDED COMPLAINT

Tentative Ruling: SUSTAINED, with 30 days leave to amend, NO OPPOSITION.

3.

CASE #	CASE NAME	HEARING NAME
CVME2513455	MOLINA VS RIVERSIDE COUNTY BOARD OF SUPERVISORS	PETITION FOR RELIEF

Tentative Ruling: DENY the petition.

On November 20, 2024, Petitioner was leaving school due to seizure activity, she has nodular heterotopia and nocturnal seizures and was sitting in the school parking lot. She states a Temecula police officer approached her and she experienced sexual violation, threats and unwanted photographs for over 20 minutes. Petitioner claims personal injuries and civil rights violations arising out of the encounter.

On August 4, 2025, Petitioner filed an untimely claim with Respondent Riverside County Board of Supervisors.

On August 8, 2025, Respondent denied Petitioner's application for leave to present a late claim. On August 13, 2025, Respondent returned the claim presented on August 4, 2025, as untimely and stated no action was taken. Respondent stated the letter dated August 8, 2025, was sent in error and was retracted.

On December 17, 2025, Petitioner filed this petition for an order for relief from denial of late government claim under Government Code¹ section 946.6. She states her failure to submit the claim on time was not due to neglect or lack of diligence but was directly caused by her disability.

In opposition, Respondent argues that Petitioner has failed to demonstrate that her failure to timely present the initial claim was due to incapacity for any time under section 946.6(c)(4) or (5). Respondents also submit evidentiary objections.

Petitioner replies arguing her petition is based on document neurological disabilities which prevented her from being able to comply with the legal requirements of the Government Claims Act. She argues her evidence was submitted to demonstrate the existence and

¹ All further references are to the Government Code unless specifically indicated.

continuing nature of her disability, not to suggest that her condition developed after the incident.

As to Respondents' evidentiary objections to Petitioner's evidence, which are well-taken. They are as follows:

IHSS Caregiver Kassandra letter, it is undated and unsigned: Sustain on hearsay and authentication grounds.

September 29, 2025, letter from Chunyang "Tracy" Wang, MD Letter: Sustain on hearsay and authentication grounds.

May 28, 2025, Riverside County Department of Public Social Services Appointment Letter: Sustain on hearsay, foundation, relevance.

December 15, 2025, Social Security Administration Letter: Sustain on hearsay, foundation, relevance.

Medications Documentation: Sustain on hearsay and foundation grounds.

Declaration by Evelyn Molina, ¶¶ 11 (due to my disability I was unable to comply) and 13 (once reasonably able I submitted an application): Sustain on foundation grounds.

Under the Government Claims Act (the "Act"), a plaintiff suing for monetary damages against a public entity or employees must first present a claim to the public entity ("government claim") which must be acted upon or deemed rejected by the public entity. (§§ 945.4, 950.2, 950.6(a).)

To be timely, a government claim for damages must be presented to the public entity within 6 months of the date the cause of action accrued. (§ 911.2.) If a plaintiff fails to file a government claim within the 6-month period, he or she may apply to the public entity for permission to file a late claim. (§ 911.4.) Such an application must be presented within a reasonable time, and not later than one year after the accrual of the cause of action. (§ 911.4(b).) Failure to present the application within a year prohibits a court from granting any relief. (*Santee v. Santa Clara County Office of Education* (1990) 220 Cal.App.3d 702, 713.)

In this case, Petitioner's injury occurred on November 20, 2024. Under section 911.2, Petitioner had six months to file his claim, i.e. January 20, 2025. However, Petitioner did not file her claim until August 4, 2025, and concedes that the claim is untimely.

If the public entity denies the application for permission to file a late claim, the plaintiff may file a civil petition for relief from section 945.4's requirement of timely claim presentation prior to suit. (§ 946.6.) The petition must be filed within six months after the application to the public entity is denied or deemed to be denied. (§ 946.6(b).)

The court shall grant relief only if it finds (1) that the failure to present a timely claim was due to mistake, inadvertence, surprise or excusable neglect, unless the public entity proves that it would be prejudiced by granting relief; (2) the claimant was a minor during all of the claims period; (3) the claimant was a minor during any part of the claims period,

provided the application is presented within six months of the person turning 18 years of age or a year after the claim accrues, whichever occurs first; (4) the claimant was physically or mentally incapacitated during all of the claims period; (5) the claimant was physically or mentally incapacitated during any of the claims period, provided the application is presented within six months of the person no longer being physically or mentally incapacitated, or a year after the claim accrues, whichever occurs first; or (6) the claimant died during the claims period. (§ 946.6(c).)

The claimant has the initial burden of proving by a preponderance of the evidence the necessary elements for relief. (*Rodriguez v. County of Los Angeles* (1985) 171 Cal.App.3d 171, 175.) Then, the public entity has the burden to demonstrate prejudice. (*Moore v. State of California* (1984) 157 Cal.App.3d 715, 727.) “Section 946.6 is a remedial statute intended to provide relief from technical rules that otherwise provide a trap for the unwary claimant. As such, it is construed in favor of relief whenever possible. The policy favoring trial on the merits is the primary policy underlying section 946.6. To implement this policy, any doubts should be resolved in favor of granting relief. Consequently, where uncontradicted evidence or affidavits of the petitioner establish adequate cause for relief, denial of relief constitutes an abuse of discretion.” (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 275 [internal quotations and citations omitted]).

Petitioner here does not clearly specify the basis for relief under section 946.6. She states, “My failure to submit the claim on time was not due to neglect or lack of diligence but was directly caused by my disability.” (Molina Decl., ¶ 12.) Therefore, it appears she is seeking relief under section 946.6(c), subdivision (4) or (5) regarding physical or mental incapacity.

Under section 946.6(c)(4), a petitioner must establish two elements to obtain relief based on incapacity: (1) the person was physically or mentally incapacitated “during **all** of the time specified in Section 911.2 for the presentation of the claim,” and (2) “**by reason of that disability** failed to present a claim during that time.” This contemplates “an all-encompassing disability which prevents the claimant from even authorizing another to file a claim for the claimant.” (*Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373, 1384.) The inquiry “focuses only on the state of the claimant; it is not relevant if others could have voluntarily filed a claim on the claimant's behalf.” (*Id.*) However, “if the claimant's condition was such that the claimant could have authorized another to file the claim on his or her behalf, the claimant was not incapacitated from filing the claim.” (*Id.*)

Alternatively, under section 946.6(c)(5), a claimant may establish incapacity “during **any** of the time specified in Section 911.2,” provided the late claim application was filed **within the earlier of six months after the incapacity ceased or one year** from claim accrual.

Petitioner's medical evidence fails to satisfy the standard for incapacity under either subsection. The causal link between her disability and her failure to file is insufficiently clear. Dr. Wang's letter (even if considered) lacks temporal specificity regarding incapacity during the November 20, 2024, to May 20, 2025 (claims period). Moreover, Petitioner's extensive documented activities during the claims period demonstrate functional capacity inconsistent with all-encompassing incapacity. Her ability to attend school, draft detailed emails, and coordinate with multiple different government offices

and officials establishes that she was not so incapacitated that she could not have filed the claim or authorized someone to file a claim on her behalf. The pattern of intermittent acute episodes punctuating baseline functional capacity does directly contradicts the requirement of incapacity “during all of the time” for claim presentation under section 946.6(c)(4). Further, Petitioner offers no explanation as to why she was unable to file a claim during the time she was contacting other offices and attending school. Petitioner expressly seeks relief only based on incapacity but have failed to carry her burden of proving same by a preponderance of the evidence.

4.

CASE #	CASE NAME	HEARING NAME
CVME2601760	CONTRERAS VS LOANCARE, LLC	PETITION FOR RELIEF FROM FINANCIAL OBLIGATION DURING MILITARY SERVICE

Tentative Ruling: OFF CALENDAR BY STIPULATION.